



MINISTERIAL ESCALATION: SANC Statutory Failure | Professional Misconduct Complaint – Patient Safety & Whistleblower Victimisation | Sr. WW Matthee (SANC: 1583 1886)

1 message

Wilbur William Matthee <info@ethichawks.co.za> Mon, 16 Feb 2026 at 08:00
To: ndoh@health.gov.za
Cc: registrar@sanc.co.za, professionalconduct@sanc.co.za, Legal Med <Legalmed@hpcsa.co.za>

To the Honourable Minister of Health and the Director-General of the National Department of Health,

I respectfully submit this formal ministerial escalation regarding the failure of the South African Nursing Council (SANC) to acknowledge or act on a formal complaint of Professional Misconduct filed on 10 February 2026.

Six days have elapsed. SANC has provided no acknowledgement, no case reference number, and no assigned investigator – including after the Health Professions Council of South Africa (HPCSA) copied SANC directly on a written jurisdictional referral on 11 February 2026.

THE COMPLAINT CONCERNS:

- Suppression of a systemic clinical risk affecting chronic patients (GEMS Ref: 000655789)
- Abandonment of duty of care during a documented psychiatric crisis on 21 May 2025
- Professional retaliation using a private psychiatric diagnosis to authorise a 40.47% illegal salary deduction
- Public misgendering followed immediately by a retaliatory clinical directive

TWO STATUTORY BODIES HAVE ALREADY SPOKEN:

- The Council for Medical Schemes formally found "Administrative Misconduct and Ethical Failure" and explicitly referred this matter to SANC (CMS-REQUEST-3)
- The South African Human Rights Commission formally acknowledged the "seriousness of the allegations"

I am a registered nurse (SANC: 1583 1886), a formally recognised whistleblower, and am currently destitute, and living with a formally diagnosed psychiatric disability as a direct consequence of the conduct described in this complaint. Every day that SANC remains silent is a day on which the Respondents continue to practise with no accountability.

I respectfully request that the Minister and Director-General:

- (a) Direct SANC to acknowledge the complaint within 48 hours of this escalation
- (b) Direct SANC to assign a formal case reference number and named investigator within 5 business days
- (c) Direct SANC to initiate a formal inquiry under section 56 of the Nursing Act 33 of 2005
- (d) Request SANC to explain in writing why no acknowledgement was issued in 6 days
- (e) Place SANC on notice that PAJA review of its administrative inaction is being considered

The formal 10-section Ministerial Escalation document is attached, together with the original complaint, the HPCSA response of 11 February 2026, the CMS referral, and the SAHRC acknowledgement.

This matter is also being filed before the Labour Court Cape Town, the CCMA (WECT23564-25 and WECT24486-25), the JSE Issuer Regulation, the B-BBEE Commission (Case No: 05/02/2026), the FSCA, and the Department of Employment and Labour.

Yours faithfully,

Sr. Wilbur William Matthee
Specialist Nurse | Health Services Manager
SRN | BTech Psych, Midw, Community | PG Dip HSM (NQF 8)

4 attachments



SANC_Ministerial_Escalation_16Feb2026.pdf
187 KB



Gmail - RE_ Request for Intervention on Procedural and Human Rights Concerns.pdf
272 KB



Acknowledgement Letter Mr Matthee.pdf
472 KB



Explanatory Notice 1 of 2023 Understanding the Investigation Process of the B-BBEE Commission 8 September 2023.pdf
294 KB